

Before the
FEDERAL MARITIME COMMISSION

Docket No. 24-01

Visual Comfort & Co. v. COSCO Shipping Lines CO. Ltd

RESPONDENT’S MOTION FOR ENLARGEMENT OF PAGE LIMITS

Pursuant to the Rules of Practice and Procedure of the Federal Maritime Commission (“Commission” or “FMC”) Rules 69 and 71, Respondent respectfully requests an enlargement of the page limits otherwise applicable to its First Motion to Compel Adequate Responses to Requests for Admission and Interrogatories, filed today. The good cause supporting these requests is set forth below.

Rule 71 provides that a non-dispositive motion may not exceed 10 pages without leave of the Presiding Officer. Respondent’s First Motion to Compel Adequate Responses to Requests for Admission and Interrogatories filed today is fifteen (15) pages; this is reasonably close to the page limit. Because additional interrogatories and admissions that remain unanswered by Complainant, Respondent could not reasonably meet the 10 page limit of the Rules.

Respondent believes that granting the instant motion for enlargement of page limits will not prejudice the Complainant, and Respondent will not oppose any request for additional pages for Complainant to respond, should it seek such relief.

While the Parties have conferred with respect to Respondent’s intent to file Motions to Compel, due to the order of the Presiding Officer that such motions be filed prior to her issuance

of a final procedural schedule on May 31, Respondent did not have sufficient time to confer with opposing Counsel for Complainant with respect to instant Motion prior to its filing.

For the foregoing reasons, Respondents believe that there is more than good cause for the Presiding Officer to grant an enlargement of page limits of up to fifteen (15) and respectfully request such relief.

Respectfully submitted,
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COSCO Shipping Lines Co., Ltd.

CERTIFICATE OF SERVICE

I certify that on the 30th day of May, 2024, a true and correct copy of the foregoing **RESPONDENT'S MOTION FOR ENLARGEMENT OF PAGE LIMITS** was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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